

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC, *et al.*,
RESPONDENTS.

DECLARATION OF TIFFANY N. COMPRÉS

I, TIFFANY N. COMPRÉS, under penalty of perjury and pursuant to 28 U.S.C. § 1746, declare that the factual statements contained herein are made of my personal knowledge and are true and correct.

1. I am over the age of 18 and am otherwise *sui juris*.
2. I am a partner with the law firm Pierson Ferdinand LLP, counsel for TPG Pressure, Inc. (“TPG”) in this action.
3. Submitted with TPG’s Opening Brief in this action is a document entitled Shipment Chart, bearing appendix page number **CApp011020**, and a document entitled Damages Chart, bearing appendix page number **CApp011019**.
4. The Shipment Chart and the Damages Chart are submitted for the Commission’s consideration under Federal Rules of Evidence 611(a) as demonstrative evidence to assist in organizing and reviewing the over 900 shipments reflected therein.
5. I supervised the creation of the Shipment Chart for this litigation.
6. The Shipment Chart was created based on all the documents that Respondents Omni Logistics LLC and Epic Freight Solutions LLC provided to TPG to support the invoices listed on the Shipment Chart, and which are in the record at appendix pages **CApp02604-10121**.
7. Each line in the Shipment Chart pertains to an invoice that Respondents provided to TPG.

8. The columns reflect the following from the document set:
- A. Initial Bates number of the PDF set in which the invoice was located.
 - B. The bates number of the first page of the invoice.
 - C. The name of the Respondent that issued the invoice.
 - D. The type of document (here, always an invoice).
 - E. The invoice number.
 - F. The date of the invoice.
 - G. [Reserved.]
 - H. The entity listed in the “remit payment to” portion of the invoice.
 - I. Where the container/shipment reflected in the invoice originated (often a supplier to TPG).
 - J. The destination of the container/shipment reflected in the invoice (often a TPG project).
 - K. [Reserved.]
 - L. The date TPG received the invoice.
 - M. The container(s) reflected in the invoice.
 - N. The port of discharge for the container(s)/shipment reflected in the invoice.
 - O. The bill of lading number associated with the container(s) in the invoice.
 - P. Whether the bill of lading was found in the document set, and if so the bates numbers of the bill of lading.
 - Q. Charge for freight transportation identified in the invoice.
 - R. The charge for pre-pull identified in the invoice.
 - S. The charge for chassis identified in the invoice.
 - T. The handling fee identified in the invoice.
 - U. The ISF charge identified in the invoice.
 - V. Customs clearance charges identified in the invoice.
 - W. Storage charges identified in the invoice.
 - X. The number of storage days identified in the invoice.
 - Y. The demurrage charges identified in the invoice.
 - Z. The demurrage days identified in the invoice.
 - AA. If a demurrage invoice was provided from the issuing entity, the amount of demurrage charged therein.
 - AB. Whether a demurrage invoice providing by the issuing entity.
 - AC. The amount of demurrage paid by credit card.
 - AD. Whether a credit card payment receipt was included showing the amount of demurrage paid by credit card.
 - AE. The charge for all risk insurance identified in the invoice.
 - AF. The wait time identified in the invoice.
 - AG. Whether any supporting documentation was provided to support wait time charges.
 - AH. The costs for door jam repairs.
 - AI. Whether any supporting document was provided to support door jam repairs.
 - AJ. Any other miscellaneous charges reflected in the invoice (often storage).

- AK. Whether any supporting document was provided to support miscellaneous charges.
- AL. Two Stop charges reflected on the invoice.
- AM. Whether any supporting document was provided to support two stop repairs.
- AN. Transload and delivery charges reflected on the invoice.
- AO. Whether any supporting document was provided to support transload and delivery charges.
- AP. Toll charges reflected on the invoice.
- AQ. Whether any supporting document was provided to support toll charges.
- AR. Congestion surcharges reflected on the invoice.
- AS. Whether any supporting document was provided to support congestion charges.
- AT. Stop fees.
- AU. Whether any supporting document was provided to support stop fees.
- AV. Fees for rejected loads reflected on the invoice.
- AW. Whether any supporting document was provided to support delivery rejection charges.
- AX. Pier congestion charges reflected on the invoice.
- AY. Whether any supporting document was provided to support pier congestion charges.
- AZ. Duties and taxes reflected on the invoice.
- BA. Whether any supporting document was provided to support duties and taxes.
- BB. Total miscellaneous charges reflected on the invoice.
- BC. Total invoice amount.
- BD. Recalculation to confirm inputs.
- BE. Whether the recalculation is the same as the total invoice amount in column BC.
- BF. Whether there is a document pre-approving credit card use for demurrage.
- BG. Whether the demurrage support documentation in column AA is the same as the demurrage charges reflected on the invoice from Respondents.
- BH. Whether there is a proof of delivery document for this container number.
- BI. Whether the delivery date in the proof of delivery aligns with the delivery date reflected in the invoice.
- BJ. Whether there is a trailer interchange receipt for the container number reflected in the invoice.
- BK. Whether any trailer interchange receipt identified for the container in the invoice align with the dates reflected in the invoice.
- BL. Date of pick up identified on the trailer interchange receipt for the container identified in the invoice.
- BM. Date of return on the trailer interchange receipt for the container identified in the invoice.
- BN. Notes (various).

I declare under penalty of perjury that the foregoing is true and correct.

Dated: April 9, 2024

Washington D.C.

Respectfully submitted,



Tiffany N. Comprés